

M. Sai Santoshi vs K.Madhava Rao Opposite Party on 11 December, 2021

Author: B.R. Sarangi

Bench: B.R. Sarangi

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IN THE HIGH COURT OF ORISSA AT CUTTACK
TRP (C) No. 279 of 2021

M. Sai Santoshi

.....

Petitioner

Mr.L. Pradhan, Advocate

Vs.

K.Madhava Rao

.....

Opposite party

CORAM:

DR. JUSTICE B.R. SARANGI

ORDER

11.12.2021 Order No. TRP (C) No. 279 of 2021 & I.A. No. 318 of 2021 This matter is taken up by hybrid mode.

2. Heard.

3. The petitioner-wife has filed this application seeking transfer of C.P. No.61 of 2021 pending in the court of learned Judge, Family Court, Berhmapur to the court of learned Judge, Family Court, Boudh.

4. Learned counsel for the petitioner contended that the petitioner- wife has filed C.P. Case No. 21 of 2020 in the court of learned Judge, Family Court, Boudh under section 13 (1) (1-a) (1-b) of the Hindu Marriage Act for dissolution of the marriage, where as the opposite party-husband has filed C.P. Case No. 61 of 2021 in the court of learned Judge, Family Court, Berhmapur under Section 9 of the Hindu Marriage Act, read with section 7 (i)(a) of the Family Court Act for restitution of conjugal rights. It is further contended that since the petitioner is residing at Boudh and it is becoming inconvenient on her to part to participate in the proceeding at Berhampur. Therefore, the petitioner seeks for transfer of C.P. No.61 of 2021 pending in the court of learned Judge, Family Court, Berhmapur to the court of learned Judge, Family Court, Boudh.

5. Issue notice to the opposite party both in main case and interlocutory application by Registered Post with A.D. fixing a short returnable date, requisites for which shall be filed within three days.

Arun

(DR. B.R. SARANGI, J.)

